

Court No. - 40

Case :- WRIT - C No. - 20742 of 2018

Petitioner :- Faizul Hasan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Amir Khan

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for the respondent Electricity Department.

The contention raised is that the citation of recovery for arrears of electricity dues has been issued without following the procedure prescribed in law and without there being a valid provisional or final assessment order in the matter

Sri Chandan Agarwal submits that this is a matter of theft and a first information report was lodged a copy whereof has already been filed annexed as annexure-2 to the writ petition. It is therefore submitted that the proceedings must have been undertaken pursuant to the said discovery of theft of electricity.

In our considered opinion so far as theft is concerned, the offence is compoundable keeping in view the provisions of Section 152 of the Electricity Act, 2003.

So far as assessment is concerned, a provisional assessment or final assessment has to be carried out after due notice to the consumer concerned. In the above circumstances when the allegations are that the procedure for provisional or final assessment has not been followed as per the U.P. Electricity Supply Code, 2005 we do not think it proper to keep the matter pending before this Court and direct that the petitioner may file an application before the respondent no.3 which shall be treated to be an objection in relation to the proposed assessment against the petitioner and the same shall be decided within four weeks of the date of presentation of a certified copy of the order before the third respondent. The recovery proceedings through the impugned citation dated 5.05.2018 shall abide by the order to be passed by the respondent no.3. The writ petition stands disposed of accordingly.

Order Date :- 31.5.2018

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Hon'ble Shashi Kant,J.

Ref:- Civil Misc. Correction Application No. 02 of 2018.

The date 05.05.2018 occurring in the last paragraph of our order dated 31.05.2018 shall be read as 15.05.2018.

The application is allowed.

Order Date :- 10.8.2018

S.Chaurasia